

SUPREME OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRIAN ACEVEDO,

Plaintiff(s),

-against-

Index No.:

Date of Filing:

Plaintiff(s) designates
Bronx County as the
Place of Trial and
Place of Occurrence

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER K. SEWARD, JOHN JANE
DOE 1," JOHN and JANE DOE 2" and
"JOHN and JANE DOE 3," fictitious names
intended to represent the other police officers
who falsely arrested Plaintiff(s) as alleged
in this lawsuit,

Defendant(s).

SUMMONS WITH NOTICE

Plaintiff(s) resides at
1264 Sheridan Avenue
County of Bronx

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TO THE ABOVE-NAMED DEFENDANT(S)

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after their service of this summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Bronx, New York
February 12, 2020

Yours, etc.

LESCH & LESCH, P.C.

By: 

DAVID P. LESCH, ESQ.
Attorneys for Plaintiff(s)
860 Grand Concourse, Suite 2M
Bronx, New York 10451
(718) 292-1131

Defendant(s) Address:
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, New York 10007

2 East 169 Street
Bronx, New York 10452-7800

POLICE OFFICER K. SEWARD
c/o New York City Police Department 44th Precinct
2 East 169 Street
Bronx, New York 10452-7800

JOHN and JANE DOE 1
c/o New York City Police Department 44th Precinct
2 East 169 Street
Bronx, New York 10452-7800

JOHN and JANE DOE 2
c/o New York City Police Department 44th Precinct
2 East 169 Street
Bronx, New York 10452-7800

JOHN and JANE DOE 3
c/o New York City Police Department 44th Precinct
2 East 169 Street
Bronx, New York 10452-7800

NOTICE: The nature of this action is: Personal Injury

The relief sought is: As demanded in complaint

Upon your failure to appear, judgment will be taken against you by default for the sum as demanded in complaint with interest from May 20, 2019, and the costs of this action.

SUPREME OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BRIAN ACEVEDO,

VERIFIED COMPLAINT

Index No.:

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER K. SEWARD, JOHN JANE
DOE 1," JOHN and JANE DOE 2" and
"JOHN and JANE DOE 3," fictitious names
intended to represent the other police officers
who falsely arrested Plaintiff(s) as alleged
in this lawsuit,

Defendant(s).

-----X
Plaintiff(s), **BRIAN ACEVEDO**, by his attorneys, **LESCH & LESCH, P.C.**, complaining
of the Defendant(s) **THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER K. SEWARD, "JOHN and JANE DOE 1", "JOHN and
JANE DOE 2", and "JOHN and JANE DOE 3",** hereby alleges:

1. That upon information and belief, at all times herein mentioned, Defendant(s), **THE
CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing
under and by virtue of the laws of the State of New York.

2. That heretofore and prior to the commencement of this action, and within ninety (90)
days after the claim arose, Plaintiff(s) duly served upon the Defendant(s), **THE CITY OF NEW
YORK**, a notice in writing, duly sworn to and verified, setting forth the following: name and post
office address of the claimant; the nature of the claim; the time when, the place where and the
manner in which the claim arose; the items of damage and injuries as far as then ascertained.

3. That the said Defendant(s), **CITY OF NEW YORK**, has wholly neglected and

refused to make an adjustment and payment of said claim, and more than ninety (90) days has elapsed since the claim arose.

4. That the Defendant(s), **CITY OF NEW YORK**, has waived their right to a physical examination, and an oral hearing was held on November 26, 2019, and more than ninety (90) days have elapsed since the serving and filing of the Notice of Claim upon the Defendant(s), **THE CITY OF NEW YORK**.

5. That on or about May 20, 2019, at approximately 2:50 p.m., Plaintiff(s), was the operator of a 2006 Blue Volkswagen bearing New York Registration Number JBN6927 for the year 2019.

6. That on or about May 20, 2019, at approximately 2:50 p.m., Plaintiff(s), **BRIAN ACEVEDO**, was proceeding along the southeast corner of Woodycrest Avenue at/or near West 164th Street, in the County of Bronx, City and State of New York, Plaintiff(s) was pulled over and was falsely arrested by the Defendant(s), **THE CITY OF NEW YORK**, its servants, agents and/or employees including police officers and the **NEW YORK CITY POLICE DEPARTMENT**.

6. That the aforesaid arrest was wrongful, willful and malicious and without right, warrant or pretence of legal process, and this Plaintiff(s) was also wrongfully imprisoned, confined, not given immediate medical attention and/or treatment and deprived of his liberty on May 20, 2019.

7. That the aforesaid imprisonment false arrest and detention was perpetuated by the Defendant(s), **NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER K. SEWARD**, Officer ID: 959233, "**JOHN and JANE DOE 1**," "**JOHN and JANE DOE 2**" and "**JOHN and JANE DOE 3**," fictitious names intended to represent the police officers who falsely arrested Plaintiff(s) with the use of excessive force.

8. That when said false arrest and/or detention took place, Defendant(s) **NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER K. SEWARD, "JOHN and JANE DOE**

1," **"JOHN and JANE DOE 2"** and **"JOHN and JANE DOE 3"**, were acting in the scope of their employment, as well as individually.

9. That when arrest and/or imprisonment took place, Plaintiff(s), **BRIAN ACEVEDO** was conducting himself in a quiet and orderly manner.

10. By reason of the foregoing, Plaintiff(s) was deprived of liberty and was made ill and subjected to ridicule, scorn and division of those knowing his detention.

11. That this Plaintiff(s) was held at the 44th Precinct and then brought and confined to Lincoln Medical and Mental Hospital located at 234 East 149th Street, Bronx, New York 10451 and remained there for three to four days in handcuffs.

12. That the amount of damages sustained by Plaintiff(s) against the defendants exceeds the jurisdictional limits of this Court.

WHEREFORE, Plaintiff(s) **BRIAN ACEVEDO**, demands judgment against the Defendant(s), **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER K. SEWARD, "JOHN and JANE DOE 1", "JOHN and JANE DOE 2",** and **"JOHN and JANE DOE 3"**, its servants, agents and employees, in such amount that will fairly compensate Plaintiff(s) for injuries sustained on May 20, 2019, with interests and costs of disbursements from this action.

Dated: Bronx, New York
February 12, 2020

Yours, etc.

LESCH & LESCH, P.C.

By: 

DAVID P. LESCH, ESQ.
Attorneys for Plaintiff(s)
860 Grand Concourse, Suite 2M
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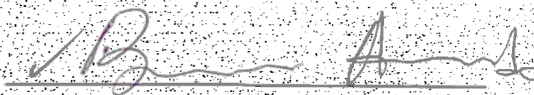
VERIFICATION

STATE OF NEW YORK)

ss:

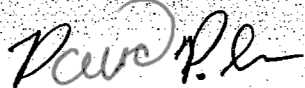
COUNTY OF BRONX)

Brian Acevedo, being duly sworn, deposes and says that she is the plaintiff in the within action, that she has read the foregoing **VERIFIED SUMMONS and COMPLAINT** and knows the contents thereof; that the same is true to his knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, he believes them to be true.



Sworn to before me this

12 day of February 2020



NOTARY PUBLIC

DAVID P. LESCH
Notary Public, State of New York
No. 02LE6376633
Qualified in New York County
Commission Expires 06/18/2022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

BRIAN ACEVEDO,

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SUMMONS & COMPLAINT

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Attorneys for Plaintiff(s)

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